

Tentative Rulings and Resolution Review Hearings
February 3, 2025
Department 64 (formerly Department 3)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

HULBERT VS. CROSS

Case Number: CVPO18-0190446

Tentative Ruling on Motion for Summary Judgment: Defendant, Richard Cross, M.D. moves for summary judgment pursuant to CCP § 437c against the single medical negligence cause of action alleged by Plaintiff, Darren Hulbert. This Motion for Summary Judgment was originally granted by this Court, on September 9, 2019. Plaintiff appealed. The Third District Court of Appeal reversed and remanded with instructions. On November 22, 2021, the Court received the remittitur of the case.

On April 22, 2022, this Court issued a Ruling on Motion for Appointment of Medical Expert, consistent with the Appellate Court’s decision. On September 18, 2024, this Court issued an Order to Show Cause (“OSC”) to Place Defendant’s Motion for Summary Judgment Back on Calendar. Both Plaintiff and Defendant filed and properly noticed responses to the OSC, which the Court duly considered. Given the totality of the circumstances, the Court made the discretionary determination that Plaintiff’s access to the civil courts is not impeded. *Hulbert v. Cross*, 65 Cal. App. 5th 405, 414 (2021). The Court has provided several of the remedies the *Hulbert* Court explained were available to ensure indigent prisoner litigants are afforded meaningful access to the courts, these efforts have now included but are not limited to waiver of all court fees, numerous hearings with the parties to discuss how best to provide the Plaintiff with access to the Court and access to attorneys and experts who might assist him with his case, numerous continuances to allow Plaintiff to procure counsel and independent expert advice, provision of information to the Plaintiff concerning counsel and potential medical experts (including an offer to advance expenses associated with medical expert retention), ordering the Plaintiff’s correctional facility to provide Plaintiff with time and access to facilities in order to appear at hearings telephonically and in an effort to afford Plaintiff with the best possible opportunity to seek retention of counsel or medical experts, and even temporary appointment of the County Counsel’s Office to assist the Plaintiff. The Court considers these efforts to be the innovative and imaginative procedures contemplated by the Appellate Court as those sorts of efforts most likely to ensure the Plaintiff’s access to justice notwithstanding his incarceration. The Court even considered staying this action pending the

Plaintiff's release from custody, but is informed he is serving an indeterminate term.

This case was originally filed July 23, 2018. The Remittitur was issued by the Appellate Court on November 11, 2021, and this Court has been undertaking the above summarized efforts ever since. Specifically, the Court has undertaken 14 substantive hearings since the remittitur in an effort to assist the Defendant in obtaining legal representation and that he could retain an expert to assist him with his response to the Motion for Summary Judgement, all in an effort to comport the Appellate opinion. Also, the OSC placing the MSJ back on calendar was heard on November 12, 2024. By hearing the MSJ on today's date, the Court "re-started" the clock insofar as the notice period for these motions as set forth in the CCP. In doing so, the Court the Court notes 83 days between OSC hearing and MSJ hearing on today's date, Feb. 3.

This Court finds it has undertaken the extensive efforts contemplated by the Appellate Court to assure Plaintiff's access to justice. Indeed, many of these efforts are not available to non-incarcerated self-represented litigants. The Court also finds it has exhausted reasonable efforts to provide the Plaintiff with ample opportunity to procure counsel and/or medical experts. Mindful of the rights of all parties to timely resolution of claims and the Court's duty to timely resolve litigation consistent with codified case disposition standards, the Court finds it is appropriate to now resume proceedings on the Plaintiff's Motion for Summary Judgement. In its November 12, 2024 Order, the Court specified that it would consider the original papers, and also would consider any supplemental briefing. Plaintiff's brief was due by close of business on January 24, 2025. Defendant's brief was due by close of business on January 29, 2025.

On January 24, 2025, the Defendant filed a Request to Change the Hearing Date on this motion, due to a lockdown in the Prison where he is currently housed. In the interest of maintaining the Defendant's access to justice, especially as directed by the Appellate Court, this Court will grant this request and hereby re-sets the hearing of this matter to **March 17, 2025 at 8:30 a.m. in Department 64. Plaintiff's further briefing, if any, must be filed and served no later than March 7, 2025; Defendant's further briefing, if any, must be filed and served no later than March 12, 2025. No appearance is required on today's calendar.**

LAKEVIEW LOAN SERVICING, LLC VS. FIRSTPLUS FINANCIAL, INC., ET AL.

Case Number: 24CV-0204251

Ruling on Ex Parte Application for Order Authorizing Service on Secretary of State: In this action, filed February 8, 2024, Plaintiff has filed the instant ex parte application to serve Defendant Firstplus Financial, Inc. by means of substitute service on the California Secretary of State. Plaintiff alleges Defendant Cody Cournoyer purchased certain real property from Melanie Shockley on February 5, 2021. To effectuate this purchase, Defendant obtained a loan for \$245,373.00 which was secured by a first deed of trust on the real property. The note and deed of trust were eventually acquired by Plaintiff. After Defendant, Cournoyer, defaulted in the payment of this loan, Plaintiff began a non-judicial foreclosure. In the course of this foreclosure process, Plaintiff discovered a previously recorded lien (deed of trust) on the real property in the amount of \$18,258.94. Plaintiff contends it did not previously know of this lien and that it is informed and believes that this lien was previously satisfied and that the deed of trust evidencing this lien should have been extinguished by the filing of a reconveyance. The various causes of action in Plaintiff's complaint are intended to extinguish this prior lien.